

Girdhari Lal vs Smt Anita Alias Kamli And Anr on 5 September, 2011

IN THE HIGH COURT OF JUDICATURE FOR RAJASTHAN
AT JAIPUR BENCH, JAIPUR
O R D E R
S.B.Civil Writ Petition No.11577/2011
Girdhari Lal vs. Smt.Anita @ Kamli & Anr.

DATE : 5th September, 2011

HON'BLE MR. JUSTICE NARENDRA KUMAR JAIN-I

Mr.Anshuman Saxena, for petitioner.

*** Heard learned counsel for petitioner.

2. Petitioner has preferred this writ petition with a prayer that Family Court No.2, Jaipur (respondent No.2) may be directed to conclude and decide the application No.532/2009, titled As Girdhari Lal Vs. Anita, pending before it, under Section 13 of the Hindu Marriage Act, within a period of three months.

3. Learned counsel for petitioner submitted that petitioner filed an application under Section 13 of the Hindu Marriage Act, 1955 (for short 'the Act') for grant of divorce on the ground of cruelty against respondent No.1 in Family Court No.2, Jaipur City, Jaipur way back on 13th May, 2009, wherein respondent No.1 appeared at her own on 19th May, 2009, thereafter the case was fixed for re-conciliation, but matter could not be reconciled, thereafter respondent did not file reply immediately and took one year's time in it and ultimately reply was filed on 7th May, 2010, the statement of petitioner has been recorded on 28th July, 2011 and now case is fixed for his cross-examination on 6th September, 2011.

4. He further submitted that as per sub-section (2) of Section 21B of the Act, every petition under this Act is to be tried as expeditiously as possible and endeavour shall be made to conclude the trial within six months from the date of service of notice of the petition on the respondent. He submitted that respondent No.1 is delaying the proceedings of the case, therefore, a suitable direction be given to the concerned Court to conclude the trial of the case within reasonable period.

5. I have considered the submissions of learned counsel for petitioner and examined the copy of order sheets of Family Court No.2, Jaipur from 19th May, 2009 to 28th July, 2011.

6. The certified copy of application under Section 13 of the Act has also been placed on record, which was filed in the concerned court on 13th May, 2009. From the order sheets, it appears that respondent No.1 herself appeared before the Court concerned at her own on 19th May, 2009 and she is regularly attending the case in the Court below. The re-conciliation proceedings took place on 1st August, 2009, but the same failed. Thereafter, case was fixed for reply to application, but after taking number of adjournments, the reply was filed on 7th May, 2010. Now petitioner's statement i.e. examination-in-chief has been recorded on 28th July, 2011 and case is fixed for his cross-examination on 6th September, 2011.

7. Section 21B was inserted in the Act with effect from 27th May, 1976 and it was provided that trial of the petition under this Act be continued from day to day until its conclusion unless the court finds the adjournment of the trial beyond the following day to be necessary for reasons to be recorded. In sub-section (2), it is provided that every petition under this Section shall be tried as expeditiously as possible, and endeavour shall be made to conclude the trial within six months from the date of service of notice of the petition on the respondent. From the above referred provisions of the Act, it is clear that every petition under the provisions of the Act is to be taken on day to day basis and endeavour has to be made to conclude the trial within six months, however, we are aware that number of cases are pending in the Subordinate Courts and it is very difficult to take every case on day to day basis and to conclude the trial within a period of six months, but after considering the proceedings, in the present case, it appears that more than a reasonable time was granted to respondent No.1 to file reply and a long date is being given in the case. In these circumstances, I am of the view that this is a fit case wherein a direction can be given to the concerned Court to proceed in the case on day to day basis or at least to fix the case once a week and to conclude the trial within four months positively.

8. Consequently, the writ petition is disposed off with a direction to the learned Judge, Family Court No.2, Jaipur to proceed in application No. 532/2009 titled As Girdhari Lal Vs. Anita on day to day basis or to fix the said case at least once a week and to complete the trial of the case as early as possible, but not later than a period of four months from the date of receipt of certified copy of this order.

9. Registry is directed to send the copy of this Order to the concerned Court for compliance.

(NARENDRA KUMAR JAIN-I),J.

Sanjay